

Torts
Wagner v. State
2005 UT 54, 122 P.3d 599 (2005)

Keyword Subject

Negligence, Battery

Facts

The plaintiff (Mrs. Wagner) was standing in line at K-Mart when Mr. Giese, a mentally disabled man who was on a supervised visit to the store as part of his treatment, grabbed her by the head and threw her to the ground.

Procedural History

Trial Court: In favor of Defendant

Appeals: In favor of Defendant

Issue

Does battery require that the defendant intended to harm or offensively contact (dual intent) beyond simply intent to make contact (single intent)?

Holding: No; Previous Ruling Affirmed

Principle

A defendant does not need to intend an action to be harmful in order to be found liable for battery; instead simply requiring an intent to touch the plaintiff

Reasoning

The defendant would not be capable of having an intention of harming the plaintiff, yet the simple act of intending to come into contact with the defendant results in liability

Separate Opinions

Notes